

ENVIRONMENTAL IMPACT ASSESSMENT AND NGT

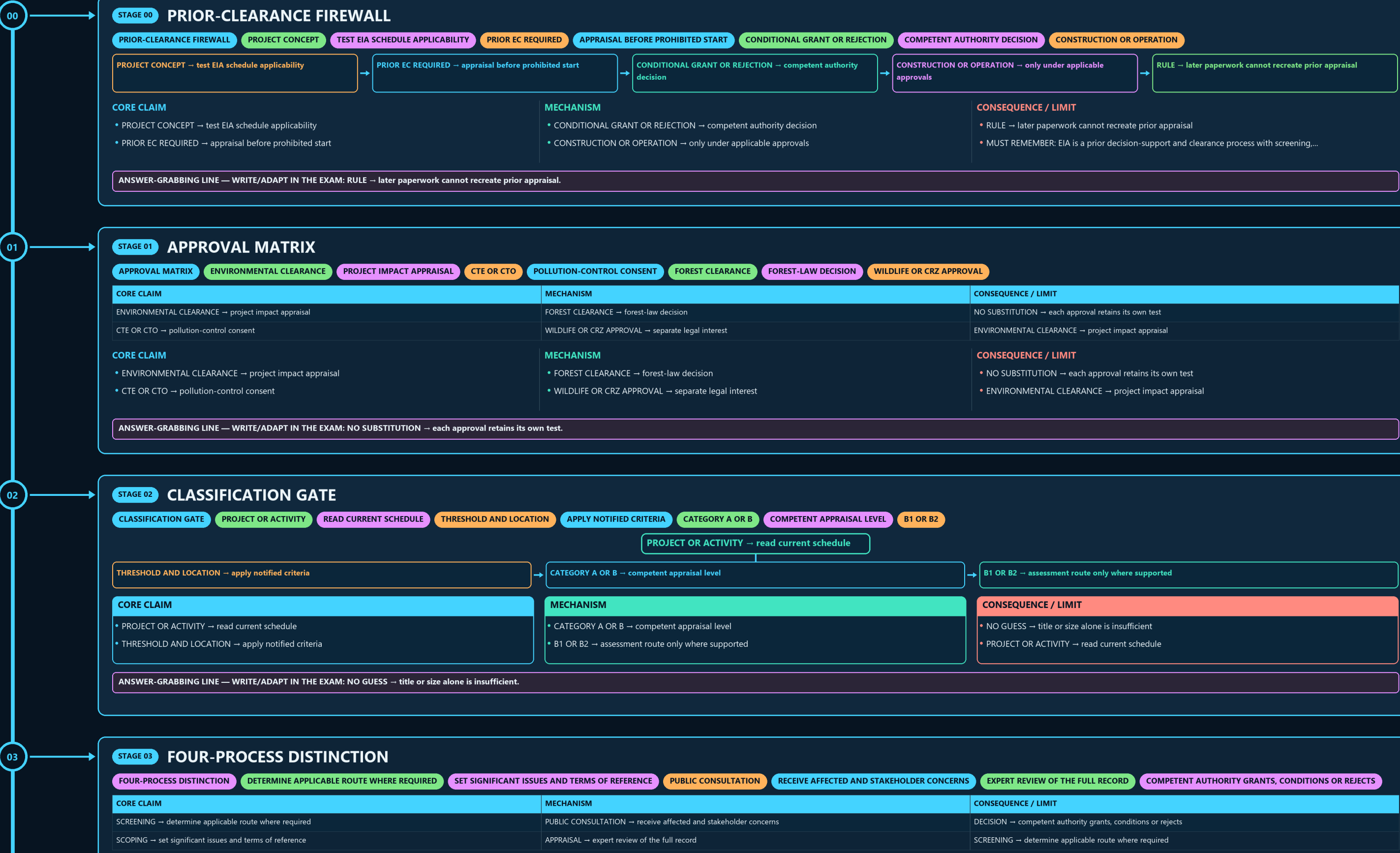
PRIOR-CLEARANCE FIREWALL → APPROVAL MATRIX → CLASSIFICATION GATE → FOUR-PROCESS DISTINCTION → EIA EVIDENCE CHAIN → CONSULTATION QUALITY GATE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXEMPTION CLAIM → cite exact provision or do not assert it.

06

STAGE 06 RECOMMENDATION-DECISION LADDER

RECOMMENDATION-DECISION LADDER PROJECT RECORD EIA, EMP AND CONSULTATION MATERIAL EXPERT COMMITTEE APPRAISAL AND RECOMMENDATION COMPETENT AUTHORITY FINAL REASONED ORDER ENFORCEABLE PROJECT OBLIGATIONS

PROJECT RECORD → EIA, EMP and consultation material

EXPERT COMMITTEE → appraisal and recommendation

COMPETENT AUTHORITY → final reasoned order

CONDITIONS → enforceable project obligations

CORE CLAIM

- PROJECT RECORD → EIA, EMP and consultation material
- EXPERT COMMITTEE → appraisal and recommendation

MECHANISM

- COMPETENT AUTHORITY → final reasoned order
- CONDITIONS → enforceable project obligations

CONSEQUENCE / LIMIT

- MONITORING → evidence after grant
- PROJECT RECORD → EIA, EMP and consultation material

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROJECT RECORD → EIA, EMP and consultation material.

07

STAGE 07 GRANT-TO-OUTCOME CHAIN

GRANT-TO-OUTCOME CHAIN CLEARANCE GRANTED LEGAL DECISION CONDITION LISTED REQUIRED SAFEGUARD ACTION IMPLEMENTED PHYSICAL COMPLIANCE MONITORING VERIFIED

CORE CLAIM

- CLEARANCE GRANTED → legal decision
- CONDITION LISTED → required safeguard

MECHANISM

- ACTION IMPLEMENTED → physical compliance
- MONITORING VERIFIED → evidence stage

CONSEQUENCE / LIMIT

- OUTCOME → environmental result, separately assessed
- CLEARANCE GRANTED → legal decision

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MONITORING VERIFIED → evidence stage; OUTCOME → environmental result, separately assessed.

08

STAGE 08 NGT IDENTITY MAP

NGT IDENTITY MAP SPECIALISED STATUTORY TRIBUNAL CPCB OR SPCB POLLUTION-CONTROL REGULATOR EAC OR SEAC APPRAISAL COMMITTEE CLEARANCE AUTHORITY ADMINISTRATIVE DECISION-MAKER

CORE CLAIM

- NGT → specialised statutory tribunal
- CPCB OR SPCB → pollution-control regulator

MECHANISM

- EAC OR SEAC → appraisal committee
- CLEARANCE AUTHORITY → administrative decision-maker

CONSEQUENCE / LIMIT

- CONSTITUTIONAL COURT → writ and appellate constitutional role
- NGT → specialised statutory tribunal

CORE CLAIM

- NGT → specialised statutory tribunal
- CPCB OR SPCB → pollution-control regulator

MECHANISM

- EAC OR SEAC → appraisal committee
- CLEARANCE AUTHORITY → administrative decision-maker

CONSEQUENCE / LIMIT

- CONSTITUTIONAL COURT → writ and appellate constitutional role
- NGT → specialised statutory tribunal

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSTITUTIONAL COURT → writ and appellate constitutional role.

09

STAGE 09 JURISDICTION FORK

JURISDICTION FORK SUBSTANTIAL ENVIRONMENTAL QUESTION TEST SCHEDULE I BOUNDARY ORIGINAL CASE CIVIL ENVIRONMENTAL DISPUTE UNDER THE ACT SPECIFIED ORDER AND APPEAL PROVISION WRIT ROUTE SEPARATE CONSTITUTIONAL REVIEW

SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ORIGINAL CASE → civil environmental dispute under the Act

APPEAL → specified order and appeal provision

WRIT ROUTE → separate constitutional review

CORE CLAIM

- SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary
- ORIGINAL CASE → civil environmental dispute under the Act

MECHANISM

- APPEAL → specified order and appeal provision
- WRIT ROUTE → separate constitutional review

CONSEQUENCE / LIMIT

- NO LABEL-BASED JURISDICTION → statute controls
- CLOSE DISTINCTION: EIA notification is not an Act, Terms of Reference are not clearance,...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: EIA notification is not an Act, Terms of Reference are not clearance,.

09

STAGE 09

JURISDICTION FORK

JURISDICTION FORK

SUBSTANTIAL ENVIRONMENTAL QUESTION

TEST SCHEDULE I BOUNDARY

ORIGINAL CASE

CIVIL ENVIRONMENTAL DISPUTE UNDER THE ACT

SPECIFIED ORDER AND APPEAL PROVISION

WRIT ROUTE

SEPARATE CONSTITUTIONAL REVIEW

SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ORIGINAL CASE → civil environmental dispute under the Act

APPEAL → specified order and appeal provision

WRIT ROUTE → separate constitutional review

CORE CLAIM

SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ORIGINAL CASE → civil environmental dispute under the Act

MECHANISM

APPEAL → specified order and appeal provision

WRIT ROUTE → separate constitutional review

CONSEQUENCE / LIMIT

NO LABEL-BASED JURISDICTION → statute controls

CLOSE DISTINCTION: EIA notification is not an Act, Terms of Reference are not clearance,...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: EIA notification is not an Act, Terms of Reference are not clearance,.

10

STAGE 10

REMEDY AND LIMITATION MATRIX

REMEDY AND LIMITATION MATRIX

RELIEF OR COMPENSATION

PERSON OR DAMAGE CLAIM

PROPERTY RESTITUTION

RESTORE AFFECTED PROPERTY

ENVIRONMENT RESTITUTION

REPAIR ENVIRONMENTAL HARM

REMEDY-SPECIFIC CLOCK AND EXTENSION

CORE CLAIM

RELIEF OR COMPENSATION → person or damage claim

PROPERTY RESTITUTION → restore affected property

MECHANISM

ENVIRONMENT RESTITUTION → repair environmental harm

LIMITATION → remedy-specific clock and extension

CONSEQUENCE / LIMIT

PRINCIPLES → apply within jurisdiction and evidence

EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: State project category, competent...

CORE CLAIM

RELIEF OR COMPENSATION → person or damage claim

PROPERTY RESTITUTION → restore affected property

MECHANISM

ENVIRONMENT RESTITUTION → repair environmental harm

LIMITATION → remedy-specific clock and extension

CONSEQUENCE / LIMIT

PRINCIPLES → apply within jurisdiction and evidence

EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: State project category, competent...

MECHANISM / VERDICT — EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: State project category, competent...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: State project category, competent.

11

STAGE 11

INSTRUMENT AND ANSWER SPINE

INSTRUMENT AND ANSWER SPINE

APPLICABILITY, CATEGORY, STUDY AND CONSULTATION

APPRAISAL, REASONED ORDER AND DISTINCT APPROVALS

CONDITIONS, COMPLIANCE AND ENVIRONMENTAL OUTCOME

NGT JURISDICTION, APPEAL, RELIEF AND LIMITATION

DRAFT, NOTIFICATION, MEMORANDUM, JUDGMENT AND PYQ STATUS

PREVENT → applicability, category, study and consultation

DECIDE → appraisal, reasoned order and distinct approvals

MONITOR → conditions, compliance and environmental outcome

REMEDY → NGT jurisdiction, appeal, relief and limitation

AUDIT → draft, notification, memorandum, judgment and PYQ status

CORE CLAIM

PREVENT → applicability, category, study and consultation

DECIDE → appraisal, reasoned order and distinct approvals

MECHANISM

MONITOR → conditions, compliance and environmental outcome

REMEDY → NGT jurisdiction, appeal, relief and limitation

CONSEQUENCE / LIMIT

AUDIT → draft, notification, memorandum, judgment and PYQ status

PREVENT → applicability, category, study and consultation

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: AUDIT → draft, notification, memorandum, judgment and PYQ status.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PERIODIC PROPOSALS TO STREAMLINE OR REVISE THE EIA PROCESS

BALANCED FRAMING FOR MAINS

PRESENT THIS AS A GENUINE TRADE-OFF REQUIRING CAREFUL

COMPREHENSIVE, INDEPENDENTLY COMPILED NATIONAL DATA ON EIA CLEARANCE APPROVAL/

NGT CASE-DISPOSAL STATISTICS (PENDENCY, AVERAGE DISPOSAL TIME) ARE REPORTED

POST-FACTO (RETROSPECTIVE) ENVIRONMENTAL CLEARANCE HAS BEEN TREATED BY INDIAN

NGT'S ORIGINAL JURISDICTION COVERS SUBSTANTIAL QUESTIONS RELATING TO ENVIRONMENT

OPTIONAL SOURCE DEPTH

CAUTION: Periodic proposals to streamline or revise the EIA process (e.g., reducing timelines,

CAUTION: Balanced framing for Mains: present this as a genuine trade-off requiring careful

CAUTION: Comprehensive, independently compiled national data on EIA clearance approval/

CAUTION: NGT case-disposal statistics (pendency, average disposal time) are reported

ADVANCED DEBATE

Post-facto (retrospective) environmental clearance has been treated by Indian courts and

NGT's original jurisdiction covers substantial questions relating to environment arising

Public consultation under the EIA process has faced documented implementation critiques

NGT order implementation ultimately depends on executive/state-agency compliance

LEGACY / NUANCE

NOT: Post-facto environmental clearance has been judicially endorsed as a routine, regular

NOT: NGT has unlimited jurisdiction over every environment-related legal matter in India.

NOT: Public-consultation critiques primarily concern the absence of any consultation

NOT: NGT orders are self-executing and require no further executive action. - Implementation

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.